



TEXAS SOUTHERN UNIVERSITY

Course Name Civil Procedure	Course 510 Section 4		Term and Year: Fall 2026
Class Time	Monday, Wednesday, and Thursday 3:00 pm – 3:50 pm		
Class Location	Room 208, Second Floor of the Law School		
Professor	Ana M. Otero		
Office Hours	MWF: 10:00 am – 12:00 pm; 2:00-3:00 pm. Additionally, Zoom appointments can be arranged upon request.		
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Canvas Help	Please contact the TSU IT department.		
Course Description			
Course Purpose	Civil Procedure examines the rules and procedures that govern how courts handle civil disputes — from the filing of a complaint through final judgment, and sometimes beyond. These procedural rules shape litigation, guide strategic decision-making, and help ensure that justice is administered fairly and efficiently. A solid grasp of Civil Procedure is not merely academic; it is foundational to the practice of law. Civil Procedure is a yearlong course. In the fall semester, we study modern civil procedure in the United States, focusing on pretrial practice under Title 28 of the United States Code and the Federal Rules of Civil Procedure. The specific course content is outlined below. This course is designed around the NextGen Bar Exam's Civil Procedure requirements and prepares students for both exam success and practical legal work. Students will develop core lawyering skills, including litigation strategy (selecting the appropriate court and procedural tools), case analysis and planning (identifying procedural opportunities and risks), and legal drafting (pleadings, motions, and discovery requests). Through legal analysis, procedural decision-making, client advising, and written advocacy, students will build practice-ready skills aligned with the NextGen Bar Exam's integrated approach. <u>Fall 2026</u> • Pleadings and joinder (Federal Rules of Civil Procedure 7-20) • Brief overview of class actions		

	• Federal subject matter jurisdiction: federal question, diversity, and supplemental jurisdiction. • Removal • Personal Jurisdiction • Venue <u>Spring 2027</u> • Discovery • Disposition Without Trial: Default, Dismissals, and Summary Judgment. • Juries • Trials • Judgment as a Matter of Law • Appeals
Importance of this syllabus	
	Your success in this course begins with the syllabus. It is not merely a list of dates and assignments — it is your roadmap, reference guide, and accountability partner throughout the semester. Inside, you will find essential logistics: my contact information, assigned readings, office hours, and grading criteria. Beyond logistics, the syllabus outlines the course's substance: our learning objectives, expected competencies, and the analytical challenges embedded in each assignment. I encourage you to consult the syllabus every week — not as a formality, but as a working tool. It is designed to help you plan your preparation, track your progress, and measure your understanding against the course standards. Whether you are identifying what mastery looks like, preparing for a specific class session, or assessing your grasp of a procedural rule, the syllabus is built to guide you. Take it seriously. Let it shape your study habits, prompt your questions, and clarify your goals. If you engage with it consistently, it will keep you on track in this course — and help position you for success.
Learning Objectives	Objectives and learning outcomes for this course are listed in the weekly assignments below.
Material	
Textbooks	1. Title: Bundle: Civil Procedure: A Coursebook, Fifth Edition with Connected Quizzing and PracticePerfect Author: Glannon, Perlman. Hansen Edition: 5th Publisher: Aspen <u>Print + Digital Bundle</u> - This bundle includes both print and digital versions of ISBN 9781543843781 with Connected Quizzing, ISBN 9781543814491, as well as PracticePerfect, ISBN 9781543817317.

	2. Title: Student’s Guide to Fed Rules of Civil Procedure (2026-2027 Edition) AUTHOR: BAICKER –MCKEE Spencer Author(s): Steven Baicker-McKee and William M. Janssen Imprint: West Academic Publishing; Publication Date: June 2026 ISBN 979-8-31770-392-9 While many publications reprint the Federal Rules of Civil Procedure, I strongly recommend the Baicker-McKee and Janssen edition. Unlike most rulebooks, which simply reproduce the rules, this edition offers detailed commentary and expert annotations that provide valuable context, interpretation, and practical guidance. These insights make it much easier to understand not only what the rules say but also how they are applied in real-world litigation.
Other Suggested Reading	<i>The Power of Procedure: The Litigation of Jones v. Clinton</i>, Nan D. Hunter, (Aspen Publishers).
Classroom Technology Policy	To promote active learning and focused engagement, the use of laptops, tablets, smartphones, and all other digital devices is not permitted during class sessions. This policy is grounded in both personal experience and a substantial body of academic research. Studies repeatedly show that multitasking on digital devices impairs note-taking, reduces retention, and lowers overall course performance. A widely cited study found that students who multitasked on a laptop during a lecture scored significantly lower on a comprehension test than those who did not — and, notably, students who could simply see a classmate's laptop screen also scored lower, indicating that the harm extends well beyond the device's user (Sana, Weston, & Cepeda, <i>Computers & Education</i>, 2013). Related research on classroom laptop use similarly shows that the extent of laptop use is negatively associated with several measures of learning, including students' understanding of the material and overall course performance. More recent research reinforces these findings. A 2025 review of more than 500 empirical studies on digital technology and cognition concluded that digital multitasking predicts lower academic performance, poorer note-taking and recall, and reduced learning efficiency — largely driven by attentional interference and depleted working memory (Žnidarič, Štrumbelj, & Machidon, 2025). The review also found that students are often overconfident in their ability to multitask effectively, underestimating the extent to which digital device use degrades their comprehension in real time. This policy is designed to foster a screen-free environment that promotes deeper concentration, discussion, and a better understanding of course content. On days when we are working through a lengthy handout containing practice questions, I will permit the limited use of a laptop or tablet solely to access that document. Devices may not be used for any other purpose on those days, and

	this exception does not apply on days when we are discussing cases or reviewing PowerPoint slides. Exceptions may also be made for approved accommodations — please speak with me privately if needed.
Grading	
My portion of the course accounts for 50% of your final grade. The remaining 50% comes from the Uniform Exam, administered in December. In my section, your performance will be evaluated through quizzes and essay exams, all designed to help you apply and internalize the material we cover. I have assigned a total of 400 points to all assessments in my portion of the course. This total includes both graded assignments and participation, drawn from the following components: • Multiple-choice and true/false quizzes • A midterm exam (closed book) • Timed, graded essay exams • Class participation and engagement • A final exam (closed book) Each component is weighted to reflect its importance in demonstrating your understanding of the course material. Specific point values for individual assignments will be announced in advance. Quizzes After each major topic, students will complete a multiple-choice and true/false quiz to reinforce key concepts. Some quizzes will be open book, allowing the use of class materials, including your casebook. However, because these quizzes are time-sensitive, students should be thoroughly familiar with all handouts and assigned cases to respond effectively without relying on outside materials. Each quiz carries a designated point value, announced before administration. In addition, there may be a take-home quiz. Midterm Exam The midterm exam consists of multiple-choice and essay questions and is closed book. The midterm has been scheduled for Tuesday, October 6, 9:00–11:00 a.m. Essay Exams Throughout the semester, students will complete multiple timed, graded essay exams. Each essay is worth 10 to 30 points, contributing to the course's overall 400-point total. Essay exams are designed to assess your grasp of legal concepts, strengthen your analytical reasoning, and improve your ability to communicate effectively in writing. Within one week of each essay, I will provide individualized feedback and, in class, discuss the grading rubric or model answer to support continued improvement and clarity in legal writing. Final Exam The final exam is cumulative, closed book, and may include a take-home essay component.	

Participation Points

Participation points (approximately 10 of the 400 total points) are earned through recitation of assigned cases and participation in class and tutorials.

TWEN Quizzes

Throughout the semester, several mandatory quizzes will be posted on TWEN, the course management platform provided by Westlaw. You will receive an email notification each time a quiz becomes available, along with its open and close dates. Completing these TWEN quizzes counts toward your participation points, so it is essential to complete them within the specified timeframe.

Teaching Philosophy

Over many decades in legal education, my teaching philosophy has been a living thing—continually reshaped by experience and enriched by the wisdom of those who came before me. One enduring influence is the Lebanese poet Khalil Gibran, who wrote that the truly wise teacher does not bid you enter the house of his wisdom but instead leads you to the threshold of your own mind. That image has stayed with me throughout my career: my task was never to hand students the answers but to walk them to the door of their own understanding and trust them to open it.

That principle is the quiet architecture beneath everything I do in the classroom. I strive to teach with thought, passion, and purpose—leading by example and inviting students to reach beyond the limits they believe define them. Every student arrives at the law differently, carrying distinct instincts, fears, and sparks, so I meet them where they are rather than asking them to meet me at a fixed point. I lean on repetition and reinforcement not as rote drill but as the patient, deliberate work of helping a concept take root until it becomes instinct. My aim is never simply for students to pass an exam—it is for them to carry the foundations of the law with them long after they've left my classroom, into the courtrooms, boardrooms, and communities they will go on to serve.

Three core tenets anchor my mission as an educator:

- Igniting a lasting passion for learning
- Building a classroom that is both rigorous and humane
- Cultivating professionalism, integrity, and empathy as inseparable from legal skill

But teaching has never flowed in only one direction. My students have taught me at least as much as I hope I've given them. Their resilience—the way they keep showing up, keep pushing, keep believing in a future they haven't yet earned—continues to humble and inspire me. I believe, without reservation, in their capacity not only to become lawyers but also to become people of principle who happen to practice law. That belief carries a weight I don't take lightly: I am not only preparing skilled advocates. I am helping shape the next stewards of justice—and that is a responsibility I hope never stops feeling sacred.

Reading Assignments

I will assign the cases to specific students before class. A document with the case assignments and focus questions will be posted later.

► Objectives and Learning Outcomes

A solid grasp of federal civil procedure requires familiarity with both the structure of the state and federal court systems and the extensive rules that govern litigation. Each state operates its own judiciary, with jurisdictional authority defined by its state constitution and legislative enactments. In parallel, the U.S.

Constitution establishes a separate federal court system, in which federal statutes delineate the categories of cases within federal jurisdiction.

Before a lawsuit is filed, attorneys conduct a comprehensive pre-litigation investigation to assess the case's strengths, gather facts, identify witnesses, and evaluate the viability of legal claims. Federal litigation begins with the filing and service of pleadings, initiating a series of structured stages, including discovery, motion practice, pretrial preparation, trial, and appeal. Students will examine how each stage contributes to a case's development and resolution. Although a trial is a possible outcome, most lawsuits are settled earlier through settlement, dismissal, or summary judgment.

Among these stages, discovery plays a key role in litigation. It involves exchanging documents and information, a process that can be difficult and sometimes contentious. If no settlement is reached, the case proceeds to trial, which may be before a judge or a jury.

Throughout this process, the Federal Rules of Civil Procedure provide the primary framework for litigation. When a case proceeds to trial, the Federal Rules of Evidence serve as the primary guide for presenting and evaluating evidence. The case is not over even after a judgment is entered, because the losing parties may file multiple post-judgment motions.

► Learning Outcomes

After Chapters 1 and 2, students will be able to:

1. Compare and contrast the structure and functions of the state and federal court systems in the United States, including their organizational hierarchies.
2. Explain the key principles of subject matter jurisdiction and how they determine a court's authority to hear a case.
3. Identify the significant sources of civil procedure regulation, including constitutional provisions, statutes, and court rules.
4. Outline the main stages of the litigation process, from filing the complaint through judgment

Pre-Start (August 10-14)



I've posted several resources on Canvas that I would like you to review or listen to in advance:

1.  Video: Overview of the American Court System.
2.  Video: Civil Litigation in Federal Courts.
 - a. A short PPT presentation narrated by Professor Otero.
3.  Reading: "*How to Read a Legal Opinion*" - Berkeley Law – This article by Professor Orin Kerr is an excellent primer for understanding judicial opinions, their structure, and how to extract key legal reasoning.
4. Review Exercise #1, which includes focus questions for Chapters 1 and 2. We will briefly review the chapters in class on August 17.

► Objectives and Learning Outcomes

Pleadings provide the formal framework for a lawsuit. They articulate the nature of the legal dispute, shape the issues in contention, establish the evidentiary foundation, and lay the groundwork for the doctrine of res judicata. At their core, pleadings present either an affirmative claim for relief or a responsive defense to that claim.

When drafting pleadings, parties must comply with both federal and local procedural rules. Notably, these rules do not require exhaustive factual detail or the articulation of specific legal theories. Instead, the primary requirement is that the complaint provide the defendant with fair notice of the plaintiff's claim and the basis for that claim.

Upon receiving a complaint, the defendant has several options. They may choose to do nothing, although this risks a default judgment being entered. Alternatively, the defendant can respond by filing a motion to dismiss under Rule 12 or by submitting an answer to the complaint.

► **Learning Outcomes – Chapters 13 & 14: Pleadings and the Litigation Process**

By the end of these chapters, students will be able to:

1. Interpret and apply the Federal Rules of Civil Procedure (FRCP) relevant to pleadings, including Rules 1–9, 11, 12, 15, and 55.
2. Describe the six stages of litigation—investigation, pleading, discovery, pre-trial, trial, and appeal—and explain how the FRCP govern procedural conduct at each stage.
3. Explain how a civil action is initiated and outline the sequential steps of the pleading phase.
4. Distinguish between notice pleading and heightened pleading standards and evaluate the sufficiency of a complaint under the applicable rules.
5. Identify and analyze a defendant's response options to a complaint, including the strategic use of Rule 12 motions.
6. Describe the rules and procedures governing amendments to pleadings, including timing, limitations, and court discretion under FRCP Rule 15.
7. Demonstrate proficiency in exam-style analysis by applying pleading-related rules to hypothetical scenarios with clarity and precision.



Week 1: Introduction to Pleading

August 17 and 19



Individually, review Exercise #1, which contains focus questions for Chapters 1 and 2. We will briefly discuss Chapters 1 and 2 in class.

- Review of Chapter 13, Basic Pleading, pp. 405-452



Individually, review Exercise #2, which contains the focus questions for these cases.



Assigned cases

- ▣ *Ashcroft v. Iqbal*, p 430
- ▣ *Swanson v. Citibank*, p.441

August 21

- Chapter 14, Responding to the Complaint (or Not?), pp.453-465



Review the applicable rules to answer the questions in Exercise #3. We will go over your answers in class before discussing the assigned cases.



Assigned cases

- ▣ *Virgin Records America v. Lacey*, p. 455



Week 2: Pleading (continued)

August 24 and 26

- Chapter 14, Responding to the Complaint (or Not?), pp. 465-489



Assigned cases

- ▣ *Matos v. Nextran, Inc.*, p. 465
- ▣ *Hunter v. Serv-Tech, Inc.*, p. 475
- ▣ *Reis Robotics USA, Inc. v. Concept Industries, Inc.*, p. 483

August 28

- Chapter 14, pp.490-497



Assigned case

- ▣ *Ingraham v. United States*, pp. 489

► Objectives and Learning Outcomes

This week's coverage focuses on the ethical and procedural safeguards governing attorney conduct in federal court. Students will examine how care and candor are enforced through the rules of professional responsibility, statutory provisions, the courts' inherent authority, and principles of legal malpractice. Attention will be given to Rule 11 of the Federal Rules of Civil Procedure, which imposes an objective standard of reasonableness. Under Rule 11, attorneys must conduct a pre-filing inquiry into the law and the facts to ensure that any document submitted to the court serves a proper purpose, rests on a valid legal foundation, and is supported by evidence. Students will explore how Rule 11 deters frivolous filings and promotes integrity in litigation.

► Learning Outcomes.

After Chapter 15, students should be able to:

1. Explain the provisions and purpose of Rule 11 of the Federal Rules of Civil Procedure, including its role in promoting integrity in litigation.
2. Apply Rule 11 standards to evaluate whether a legal filing meets the requirement of a reasonable pre-filing inquiry into law and fact.
3. Describe the procedural steps for presenting a Rule 11 motion, including timing, notice requirements, and safe harbor provisions.
4. Analyze hypothetical scenarios to determine compliance or violation of Rule 11 and assess potential consequences for attorneys or parties.



Week 3:

August 31

- Complete Chapter 14.



Review the applicable rules to answer the questions in Exercise #4. We will go over your answers in class before discussing the assigned cases in Chapter 15.

September 2 and 4

- Chapter 15, Care and Candor in Pleading, pp.499-523



Assigned cases

- ▣ *Hays v. Sony Corp. of America*, p. 501
- ▣ *Hunter v. Earthgrains Co. Bakery*, p. 5112

In Week 4, we will discuss amending pleadings and the joinder of claims and parties. The objectives and learning outcomes for each are listed below.

► **Objectives and Learning Outcomes – Amending Pleadings**

Amending pleadings in federal practice refers to the process by which a party can alter, add to, or clarify its initial written statements (pleadings) in a federal lawsuit, such as the complaint or answer, to address new facts, legal theories, or correct errors. This process is governed primarily by Rule 15 of the Federal Rules of Civil Procedure.

Key features of amending pleadings include:

- **Amending as a Matter of Course:** A party may amend its pleading once without court permission within 21 days after serving it, or, if a responsive pleading or certain motions are required, within 21 days after those are served, whichever comes first.
- **Amending with Permission:** After the initial period, additional amendments require either the opposing party's written consent or the court's permission. Courts are generally instructed to grant permission freely when justice requires it.
- **Amendments During or After Trial:** If new issues arise at trial that were not included in the pleadings, the court may permit the pleadings to be amended to address those issues, provided that doing so does not prejudice the other party.

► **Learning Outcomes – Amending Pleadings**

After Chapter 16, students should be able to:

1. Describe the circumstances under which pleadings can be amended without court approval and when court permission is required.
2. Apply Rule 15 to real-world scenarios by drafting motions or stipulations to amend pleadings in federal court.
3. Analyze how and why courts determine whether to grant leave to amend pleadings, including considerations of fairness and prejudice.
4. Evaluate the strategic reasons for amending pleadings and the potential impact of such amendments on litigation.
5. Distinguish between amendments as a matter of right and those requiring consent or court approval and understand the timing requirements for each.

► **Objectives and Learning Outcomes – Joinder of Claims and Parties**

Federal practice permits extensive joinder of claims (for maximal efficiency and fairness) and joinder of appropriate parties to resolve all related disputes in a single action, subject only to practical, jurisdictional,

and due process constraints. This week, we will focus on joinder of claims and parties under the Federal Rules of Civil Procedure. You'll learn how the rules allow multiple claims and parties to be combined within a single lawsuit for greater efficiency and consistency. We will cover topics such as joining different types of claims, adding parties to a case, and the requirements that must be met to use these tools in federal court. Understanding joinder is crucial for mastering civil litigation strategies and for seeing how complex disputes can be settled in a single comprehensive legal action. We will discuss the following rules.:

Rule 13 – Counterclaim and Crossclaim

Rule 14 – Third-Party Practice

Rule 18 – Joinder of Claims

Rule 20 – Joinder of Parties

► **Learning Outcomes – Joinder of claims and parties**

After reviewing the pertinent rules and completing the exercise, students should be able to:

1. Identify and explain the principles governing joinder of claims and parties under the Federal Rules of Civil Procedure, including permissive and compulsory joinder.
2. Distinguish among joinder devices (e.g., claim joinder, party joinder, counterclaims, cross-claims, third-party claims, and intervention) and describe when each is appropriate.
3. Apply Rules 18, 19, and 20 to determine when multiple claims or parties may or must be joined in litigation, and articulate the practical and strategic considerations.
4. Analyze hypothetical civil cases to identify proper and improper joinder and evaluate joinder's effect on judicial economy, fairness, and the parties' rights.
5. Recognize the limits that subject matter jurisdiction, personal jurisdiction, and venue impose on joinder, and explain how supplemental jurisdiction may allow additional claims or parties to be heard together in federal court.



Week 4: Amending Pleadings

September 7 – Labor Day - No class

September 9

- Chapter 16, Amending Pleadings, pp. 525-539



Review the applicable rules to answer the questions in Exercise #5. We will go over your answers in class before discussing the assigned cases in Chapter 16. Exercise #5 contains practice questions in the following sections of Rule 15:

- Amending during and after the trial with leave of the court.
- Amending claims or defenses after the limitations period.
- Amending parties after the limitations period.



Assigned Case

▣ *Beeck v. Aquaslide 'N' Dive Corp.*, p. 531

September 11 Joinder of Claims and Parties

-  PPT: Joinder of Parties
-  PPT: Constitutional Requirement of Notice and Methods of Service.



Assigned Case

- ▣ *Mullane v. Central Hanover Bank*, p. 320



► Objectives and Learning Outcomes – Subject Matter Jurisdiction:

Federal courts must have subject-matter jurisdiction to hear cases brought before them. As previously discussed, these are courts of limited jurisdiction. Congress has authorized federal district courts to exercise jurisdiction over "all civil actions arising under the Constitution, laws, or treaties of the United States" (28 U.S.C. § 1331), and has enacted numerous other statutes granting jurisdiction over specific areas of federal law.

Chapters 3 and 4 examine the statutory framework and judicial precedent that define this limited jurisdiction: Chapter 3 addresses diversity jurisdiction, and Chapter 4 addresses federal-question jurisdiction.

Federal courts may also acquire jurisdiction through removal, which allows a defendant sued in state court to transfer certain cases to federal court. The rationale is that, like plaintiffs, defendants should be able to choose a federal forum whenever subject matter jurisdiction exists. Chapter 5 covers removal.

Chapter 20 covers supplemental jurisdiction — a federal court's authority to hear additional claims closely related to a case already within its original jurisdiction. Under 28 U.S.C. § 1367, a claim that does not independently satisfy the requirements for federal question or diversity jurisdiction may still be heard if it arises from the same common nucleus of operative fact as a claim that does. This doctrine promotes judicial efficiency by allowing federal courts to resolve an entire dispute in a single forum, rather than splitting off related claims to state court.

► Learning Outcomes

After Chapters 3-5 and 20, you should be able to:

1. Define key jurisdictional concepts and distinguish among subject matter, diversity, and federal question jurisdiction.
2. Analyze statutory provisions, including 28 U.S.C. §§ 1331, 1332, and 1367, and explain how they establish and limit federal jurisdiction.
3. Apply jurisdictional doctrines to hypothetical cases and evaluate whether federal courts have proper jurisdiction to hear the claims.
4. Interpret removal statutes under 28 U.S.C. § 1441 and related provisions, explaining when and how defendants may remove cases from state to federal court.
5. Explain supplemental jurisdiction, including the "common nucleus of operative fact" standard and the relationship between § 1367 and the earlier doctrines of pendent and ancillary jurisdiction.

6. Identify and assess complications that arise when cases involve multiple claims, parties, or jurisdictional bases.
 7. Critically evaluate landmark cases and their impact on the evolution of federal jurisdiction doctrines.
 8. Demonstrate legal writing and analytical skills by drafting motions or briefs that challenge or defend federal court jurisdiction.
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Week 5: Diversity Jurisdiction in the Federal Courts

September 14 and 16

-  PPT: Overview of Diversity Jurisdiction.
- Begin discussing Chapter 3, Diversity Jurisdiction in the Federal Courts, pp. 43-92.



Assigned Cases

- ▣ *Gordon v. Steele*, p. 46
- ▣ *Mas v. Perry*, p. 56

September 18



- ▣ *Hertz Corp. v. Friend*, p. 66
- ▣ *Diefenthal v. C.A.B.*, p.77



Week 6: Federal Question Jurisdiction

September 21 and 23

-  PPT: Overview of Federal Question Jurisdiction.
- Begin discussing Chapter 4, Federal Question Jurisdiction, pp. 93-127.



Assigned Cases

- ▣ *Louisville & Nashville RR v. Mottley*, p. 96
- ▣ *Gunn v. Minton*, p. 113

September 25: Removal of Cases from State to Federal Court

-  PPT: Overview of Removal of Cases from State to Federal Court.
- Chapter 5, Removal of Cases from State to Federal Court, pp. 129-145



Assigned Case

- ▣ *Avitts v. Amoco*, p. 131



Week 7: Removal – continued. Introduction to Supplemental Jurisdiction

September 28 and 30

Finalize removal discussion.

-  PPT: Overview of Supplemental Jurisdiction.
- Chapter 20, Supplemental Jurisdiction in the Federal Courts, pp. 671-705.



Assigned Cases

- ▣ United Mine Workers v. Gibbs, p. 673



October 2

- ▣ *Owen Equipment & Erection v. Kroger*, p. 685
- Finalize supplemental jurisdiction discussion.



Week 8: OCTOBER 5-9: MIDTERM WEEK
Civil Procedure Exam — Tuesday, October 6, 9:00–11:00 a.m.



► Objectives and Learning Outcomes

Before a federal trial court may exercise personal jurisdiction over a defendant, it must satisfy due process standards under the Fifth Amendment (for federal court actions) or the Fourteenth Amendment (for state court actions, which apply equally to diversity cases in federal court sitting in that state). This requirement applies to each defendant individually. The Fourteenth Amendment prohibits a state from depriving any person of life, liberty, or property without due process of law—a principle that anchors the fairness of civil litigation.

In civil procedure, fairness demands a meaningful connection between the defendant and the forum state. Before a court may enter a judgment against a defendant—such as ordering the defendant to pay damages—the defendant must have sufficient contacts with the forum state to make the exercise of jurisdiction fair and appropriate.

While the Federal Rules of Civil Procedure govern many procedural aspects of a federal lawsuit, they do not fully address the foundational requirements of personal jurisdiction and venue. These concepts are essential to the litigation process and are rooted primarily in statutory law and constitutional doctrine, rather than in the Federal Rules themselves.

Personal jurisdiction encompasses five chapters:

- Chapter 6: The Evolution of Personal Jurisdiction
- Chapter 7: Specific *In Personam* Jurisdiction

Chapter 8: Other Constitutional Bases for Personal Jurisdiction
Chapter 9: Long Arm Statutes
Chapter 10: The Constitutional Requirements of Notice and Methods of Service of Process

We will discuss:

- ◆ Key sections of **Title 28 of the U.S. Code** relevant to jurisdiction
- ◆ Pivotal cases that have shaped the modern understanding of **personal jurisdiction**
- ◆ The evolving standards courts use to determine fairness and legal authority over out-of-state defendants.

► Learning Outcomes

After Chapters 6-10, students should be able to:

1. Explain the constitutional basis for personal jurisdiction under the Fifth and Fourteenth Amendments.
2. Describe the role of due process in determining fairness in civil litigation.
3. Trace the historical development of personal jurisdiction doctrine through landmark court decisions and assess their impact on the doctrine's evolution.
4. Analyze the modern framework for personal jurisdiction, including the minimum contacts standard and the fairness principles that inform it.
5. Differentiate between general and specific jurisdiction and assess how each applies to a given set of facts.
6. Explore and evaluate alternative bases for establishing specific jurisdiction.
7. Interpret long-arm statutes and evaluate their compatibility with constitutional due process standards.
8. Apply jurisdictional concepts, including minimum contacts and fairness, to hypothetical scenarios involving out-of-state defendants.
9. Demonstrate proficiency in answering personal jurisdiction questions in bar exam format, including issue spotting and application of doctrinal principles.



Week 9: Introduction to Personal Jurisdiction

October 12 and 14

-  Overview of Personal Jurisdiction.
- Chapter 6, The Evolution of Personal Jurisdiction, pp. 149-180.

October 16



Assigned Cases

- ▣ *Pennoyer v. Neff*, p. 152
- ▣ *International Shoe v. State of Washington*, p. 167



Week 10: Personal Jurisdiction (continued)

October 19, 21, and 23

- Chapter 7, Specific *In Personam* Jurisdiction, pp. 181-254



Assigned Cases

- ▣ *World Wide Volkswagen v. Woodson*, p. 183
- ▣ *Burger King v. Rudzewicz*, p. 203
- ▣ *Asahi Metal Industry v. Superior Court*, p. 213
- ▣ *Ford Motor Co. v. Montana Eighth Judicial District Court*, p. 229



Week 11: Personal Jurisdiction (continued)

October 26, 28, and 30

- Chapter 8, Other Constitutional Bases for Personal Jurisdiction, pp. 255-297



Assigned Cases

- ▣ *Daimler AG v. Bauman*, p. 259
- ▣ *Burnham v. Superior Court*, p. 279



Week 12: Long Arm Statutes

November 2 and 4

- Chapter 9, Long Arm Statutes, pp. 299-315



Assigned Cases

- ▣ *Bensusan Restaurant Corp. v. King*, p. 307

November 6

- Writing exercises on Personal jurisdiction

► Objectives and Learning Outcomes – Venue:

Venue in federal courts refers to the specific geographic location where a lawsuit is filed and heard. The venue rules are primarily found in 28 U.S.C. § 1391, which designates the appropriate judicial district based on factors such as where the defendant resides or where the events giving rise to the claim occurred. Venue ensures that lawsuits are handled in a location convenient for parties and witnesses and that bears a logical connection to the dispute.

Venue is distinct from personal jurisdiction: while jurisdiction determines a court's power over the parties, venue addresses the most suitable location within the federal system to hear the case. Once a case is filed in one district, 28 U.S.C. § 1404(a) allows a district court to transfer the case to

another federal district where it could originally have been brought, if doing so would better serve the convenience of the parties and witnesses or the interests of justice. Either party may request a transfer, and the court may also act on its own initiative in certain circumstances.

A defendant seeking to have the case heard in a different judicial district may do so by filing a motion to change venue. These motions generally fall into two categories:

1. **Improper Venue Motion** — challenges the plaintiff's chosen district as legally incorrect under § 1391.
2. **Convenience-Based Motion** — accepts that venue is proper but argues that another district would be more appropriate or convenient under § 1404(a).

In sum, venue governs both where a federal case may be initiated and provides mechanisms for transferring a case to a more appropriate district when warranted.

Forum non conveniens is a related doctrine that allows a federal court to dismiss a case entirely—even where jurisdiction and venue are proper—when the court determines that a more suitable forum exists elsewhere, typically in another country's courts (since § 1404(a) already handles transfers between federal districts). The goal is to avoid inconvenience or unfairness to the parties or witnesses by ensuring the case is heard in the forum most closely connected to the dispute. Courts apply a balancing test, weighing private factors (such as ease of access to evidence, availability of witnesses, and burden on the parties) against public factors (such as local interest in the case, jury duty concerns, and administrative efficiency). This balancing test originates in *Gulf Oil Corp. v. Gilbert*, 330 U.S. 501 (1947), and was later applied in *Piper Aircraft Co. v. Reyno*, 454 U.S. 235 (1981), which held that a case may be dismissed for forum non conveniens even where the law of the alternative forum is less favorable to the plaintiff, so long as the remedy available there is not wholly inadequate. *Piper* also reaffirmed that a plaintiff's choice of forum receives less deference when the plaintiff is foreign, since the convenience rationale underlying that deference applies most strongly to domestic plaintiffs suing in their home forum. Dismissal is warranted only if an adequate alternative forum exists in which the case can be properly litigated, and, importantly, dismissal on this ground does not preclude the plaintiff from refiling in the more appropriate forum.

► **Learning Outcomes: Venue and *Forum Non-Conveniens* in Federal Courts**

After Chapters 11 and 12, students should be able to:

1. Define venue in the context of federal court proceedings and identify its statutory basis under 28 U.S.C. § 1391.
2. Differentiate between venue and personal jurisdiction, emphasizing their distinct legal functions in civil litigation.
3. Explain the criteria used to determine an appropriate venue based on the defendant's location and the site of relevant events.
4. Describe the process and statutory authority (28 U.S.C. § 1404(a)) for transferring a case to another federal district.
5. Describe the process and statutory authority (28 U.S.C. § 1406) for transferring a case filed in an improper venue.

6. Analyze the legal reasoning behind motions to change venue, including distinctions between improper venue and convenience-based motions.
7. Evaluate the doctrine of *forum non conveniens*, including how its two-part test (private and public interest factors) is applied.
8. Assess the conditions under which a federal court may dismiss a case for *forum non conveniens* and the implications for refiling in an alternative forum.
9. Apply venue and *forum non conveniens* principles to hypothetical case scenarios, determining where litigation should proceed.
10. Discuss the strategic considerations litigants may face when selecting or challenging venue in multi-district or international disputes.



Week 13: Venue

November 9, 11, and 13

-  PPT: Overview of venue.
- Chapter 11, Basic Venue: Statutory Allocation of Cases Within a Court System, pp. 355-371



Assigned Cases

- ▣ *Uffner v. La Reunion Francaise*, p. 364



Week 14: Venue, continued

November 16, 18, and 20

- Chapter 12, Challenges to Venue: Transfers and Dismissals, pp. 373-400



Assigned Cases

- ▣ *MacMunn v. Eli Lilly Co.*, p. 377
- ▣ *Piper Aircraft Company v. Reyno*, p. 385



Week 15: Final Exam



Final Exam. Monday, November 23

Tuesday, November 24, Last Day of Class

Essential Policies:	
Methods of Communication	I will use the following methods of communication: 1. Canvas for posting announcements, assignments, and modules. 2. TWEN for practice quizzes and emails. 3. Zoom for exam reviews and office hours.

	Email Communication Policy: Regularly checking your email is an essential part of this course. Email serves as the primary method of communication for class updates, important announcements, and individual correspondence. Please monitor your inbox frequently and respond promptly to ensure you're up to date and engaged with course requirements.
Electronic Device Policy	To maintain a focused and respectful learning environment, the use of cell phones and other electronic devices is strictly prohibited during class. All electronic devices must be powered entirely off—not just silenced—before entering the classroom. Any exceptions must be approved in advance by the instructor.
Punctuality & Attendance Policy	Students are expected to be seated and ready when class begins. Arriving late or leaving during instruction is highly disruptive and disrespectful to your peers and the learning environment. If an emergency arises that may affect your arrival time, please notify me via email before class.
Professionalism and Respect Policy	Students are expected to uphold a professional demeanor by following all course policies and procedures outlined in the syllabus. Respect for peers and the instructor is essential to maintaining a constructive and inclusive learning environment. Thoughtful participation, courteous behavior, and a commitment to academic integrity are key components of this expectation.
Classroom Accommodations for Students with Disabilities SASO- Student Accessibility Services Office	In accordance with the Americans with Disabilities Act (ADA), Texas Southern University (TSU) is committed to providing equitable access to learning opportunities to students with documented disabilities (e.g., mental health, attentional, learning, chronic health, sensory, or physical). For each class/term/semester where a student needs academic adjustments/accommodations, the qualified student must work with SASO. Contact with the SASO should be made as soon as possible to ensure academic needs are met in a reasonable time. Only the SASO can grant, modify, or withdraw academic adjustments/accommodations. If you have not yet established services through SASO but have a temporary health condition or permanent disability that requires accommodations, you are welcome to contact SASO by using the information listed on the following webpage: https://www.tsu.edu/students-services/departments/disability-services/register-with-the-ods. The SASO office offers resources and coordinates reasonable accommodations for students with disabilities and/or temporary health conditions qualifying for accommodations/academic adjustments. Reasonable accommodations are established through an interactive process between you, your faculty, and SASO. Only those academic adjustments/reasonable accommodations granted by the SASO are recognized by TSU. TSU's policy and practice are to create an inclusive and accessible learning environment consistent with federal and state law.
Title IX/Pregnant and Parenting Students	In accordance with Title IX of the Education Amendments of 1972, Texas Southern University (TSU) prohibits unlawful sexual harassment against any participant in its education programs or activities. Title IX requires schools to take steps to prevent and remedy sexual harassment, hostile environment, including sexual violence, gender-based harassment, dating/domestic violence, and stalking.

Addressing Incidents of Title IX Sexual Harassment	This prohibition against sexual harassment - including sexual violence - applies to TSU students, employees, and visitors to campus. TSU’s policy is to provide an educational, employment, and business environment free of sexual violence, unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct or communications constituting sexual harassment as prohibited by state and federal law. Incidents of Sexual Misconduct should be reported to the college Title IX Coordinator, as outlined in policy. Reports of alleged Title IX violations may be made by visiting: https://app.smartsheet.com/b/form/4e1d5ba471ee442082f477910cb1b4c4. Reports may also be made directly through email to TitleIX@TSU.edu. Pregnant and parenting students should expect to obtain reasonable academic adjustments/ accommodations based on their pregnant and parenting status to maintain access to the educational environment. These students should work with the Title IX Coordinator for appropriate academic adjustments/accommodations. TSU cannot grant retroactive adjustments, so reaching out early with requests is important. Discrimination against pregnant and parenting students is also prohibited under Title IX. For more pregnant and parenting information, please visit the Title IX webpage found at: https://www.tsu.edu/about/administration/office-of-compliance/title-ix/																																																
Fall Semester 2026 Academic Calendar	TEXAS SOUTHERN UNIVERSITY Thurgood Marshall School of Law FALL 2026 ACADEMIC CALENDAR (Updated February 16, 2026) <table><tr><td colspan="3">FALL SEMESTER 2026</td></tr><tr><td>First-Year Orientation</td><td>Monday – Friday</td><td>August 10-14, 2026</td></tr><tr><td>First Day of Class</td><td>Monday</td><td>August 17, 2026</td></tr><tr><td>Last Day to ADD/DROP</td><td>Wednesday</td><td>August 19, 2026¹</td></tr><tr><td>Census I Date</td><td>Tuesday</td><td>September 1, 2026</td></tr><tr><td>Non-Attendance (NAT) Reporting</td><td>Tuesday</td><td>September 1, 2026</td></tr><tr><td>Labor Day Holiday (No Classes)</td><td>Monday</td><td>September 7, 2026</td></tr><tr><td>Purge for Non-full Payment</td><td>Wednesday</td><td>September 9, 2026</td></tr><tr><td>Mid-Term Examinations</td><td>Monday – Friday</td><td>October 5-9, 2026</td></tr><tr><td>Last Day to Drop a Class or Withdraw</td><td>Friday</td><td>November 6, 2026²</td></tr><tr><td>Last Day of Classes</td><td>Tuesday</td><td>November 24, 2026</td></tr><tr><td>First Year Professors’ Grades due</td><td>Tuesday</td><td>November 24, 2026</td></tr><tr><td>Thanksgiving Holiday</td><td>Wednesday – Friday</td><td>November 25-27, 2026</td></tr><tr><td>Reading Period</td><td>Wednesday – Sunday</td><td>November 25-29, 2026</td></tr><tr><td>Final Examinations</td><td>Monday – Thursday</td><td>Nov. 30 – Dec. 10, 2026</td></tr><tr><td>University Commencement Ceremony</td><td>Friday</td><td>December 11, 2026</td></tr></table> <i>*Other than 1L uniform examination grades, all letter grades are due on Thursday January 7, 2027.</i>	FALL SEMESTER 2026			First-Year Orientation	Monday – Friday	August 10-14, 2026	First Day of Class	Monday	August 17, 2026	Last Day to ADD/DROP	Wednesday	August 19, 2026 ¹	Census I Date	Tuesday	September 1, 2026	Non-Attendance (NAT) Reporting	Tuesday	September 1, 2026	Labor Day Holiday (No Classes)	Monday	September 7, 2026	Purge for Non-full Payment	Wednesday	September 9, 2026	Mid-Term Examinations	Monday – Friday	October 5-9, 2026	Last Day to Drop a Class or Withdraw	Friday	November 6, 2026 ²	Last Day of Classes	Tuesday	November 24, 2026	First Year Professors’ Grades due	Tuesday	November 24, 2026	Thanksgiving Holiday	Wednesday – Friday	November 25-27, 2026	Reading Period	Wednesday – Sunday	November 25-29, 2026	Final Examinations	Monday – Thursday	Nov. 30 – Dec. 10, 2026	University Commencement Ceremony	Friday	December 11, 2026
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